

STATE OF NEW YORK

4658--A

2025-2026 Regular Sessions

IN SENATE

February 10, 2025

Introduced by Sen. S. RYAN -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general municipal law and the public authorities law, in relation to prohibiting the use of funds, financial incentives or subsidies where facilities or property are used primarily for e-commerce storage and transfers, or the facilitation thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 862 of the general municipal law is amended by
2 adding a new subdivision 3 to read as follows:

3 (3) No funds, financial incentives or subsidies of the agency shall be
4 used in respect of any project where facilities or property are used
5 primarily for electronic commerce (e-commerce) storage and transfers, or
6 the facilitation thereof.

7 § 2. The second undesignated paragraph of section 1953 of the public
8 authorities law, as amended by chapter 579 of the laws of 2021, is
9 amended to read as follows:

10 Notwithstanding the provisions of this section to the contrary, such
11 financial assistance may, however, be provided to a project where facil-
12 ities or property that are primarily used in making retail sales of
13 goods or services to customers who personally visit such facilities to
14 obtain such goods or services constitute more than one-third of the
15 total project cost, where: (i) the predominant purpose of the project
16 would be to make available goods or services which would not, but for
17 the project, be reasonably accessible to the residents of the city of
18 Troy because of a lack of reasonably accessible retail trade facilities
19 offering such goods or services; or (ii) the project is located in a
20 highly distressed area. With respect to projects authorized pursuant to
21 this paragraph no project shall be approved unless the authority shall

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 find after the public hearing required by section twenty-three hundred
2 seven of this chapter that undertaking the project will serve the public
3 purposes of this article by preserving permanent, private sector jobs or
4 increasing the overall number of permanent, private sector jobs in the
5 state. Where the authority makes such a finding, prior to providing
6 financial assistance to the project by the authority, the chief execu-
7 tive officer of the city of Troy shall confirm the proposed action of
8 the authority. No funds, financial incentives or subsidies of the
9 authority shall be used in respect of any project where facilities or
10 property are used primarily for electronic commerce (e-commerce) storage
11 and transfers, or the facilitation thereof. To carry out said purposes,
12 the authority shall have power:

13 § 3. The second undesignated paragraph of section 2306 of the public
14 authorities law, as amended by chapter 304 of the laws of 2013, is
15 amended to read as follows:

16 Notwithstanding the provisions of this section to the contrary, such
17 financial assistance may, however, be provided to a project where facil-
18 ities or property that are primarily used in making retail sales of
19 goods or services to customers who personally visit such facilities to
20 obtain such goods or services constitute more than one-third of the
21 total project cost, where: (i) the predominant purpose of the project
22 would be to make available goods or services which would not, but for
23 the project, be reasonably accessible to the residents of the city of
24 Auburn because of a lack of reasonably accessible retail trade facili-
25 ties offering such goods or services; or (ii) the project is located in
26 a highly distressed area. With respect to projects authorized pursuant
27 to this paragraph no project shall be approved unless the authority
28 shall find after the public hearing required by section twenty-three
29 hundred seven of this title that undertaking the project will serve the
30 public purposes of this article by preserving permanent, private sector
31 jobs or increasing the overall number of permanent, private sector jobs
32 in the state. Where the authority makes such a finding, prior to provid-
33 ing financial assistance to the project by the authority, the chief
34 executive officer of the city of Auburn shall confirm the proposed
35 action of the authority. No funds, financial incentives or subsidies of
36 the authority shall be used in respect of any project where facilities
37 or property are used primarily for electronic commerce (e-commerce)
38 storage and transfers, or the facilitation thereof. To carry out said
39 purpose, the authority shall have power:

40 § 4. This act shall take effect immediately.